

as authority for imposing a mandatory duty against the school district under Education Code section 44807 and Title 5 of Code of Regulations section 5552. However, the court in that case did not discuss liability in the context of a direct liability under Government Code section 815.6. Rather, the court discussed the school district's liability for negligence without specifying whether such liability is direct or derivative.

The demurrer is sustained without leave to amend as to the second cause of action for breach of mandatory duty as Plaintiff identifies no statutory enactment imposing a mandatory duty on which the District can be found directly liable.

Defendant District is ordered to answer within ten (10) days from service of the notice of the order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506366	DOE VS RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The District moves to strike Plaintiff's prayer for attorney's fees, statutory damages, and expert witness fees.

"[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer." (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains irrelevant, false, or improper matter. (Code Civ. Proc., §436(a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from matter which is judicially noticeable. (Code Civ. Proc., §437(a).) Here, in the absence of an underlying statutory basis, Plaintiff's demand for attorney's fees, expert witness fees, and statutory damages are not supported by the allegations of the FAC. (Code Civ. Proc., §§ 436(a), 431(b) (3).)

Under the "American rule," each party to a lawsuit ordinarily pays its own attorney's fees. (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.) Attorney fees are allowable as court costs only when authorized by statute or contract, or authorized by "law". (Code Civ. Proc., §§1033.5(a)(10)(A), (B) & (C), 1021, 1032; *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) Plaintiff's causes of action alleged against District are based in the tort of negligence. Plaintiff argues attorney's fees are authorized under Code of Civil Procedure section 1021.5. Section 1021.5 ("private attorney general theory") authorizes attorney fees to be granted to a successful party "in any action which has resulted in the enforcement of an important right affecting the public interest...." (Code Civ. Proc., §1021.5.) However, this is an action for damages for injuries Plaintiff personally sustained, not one for pursuing private enforcement of a

matter of public interest. Plaintiff also mentions Civil Code sections 52 and 52.4, but Plaintiff has not brought any claims under these provisions.

Moreover, Plaintiff identifies no other basis for seeking statutory damages or expert witness fees. Plaintiff mentions Civil Code section 52, but Plaintiff cannot seek statutory damages under this section. The Unruh Act (Civ. Code, § 52) provides that all persons in California are entitled ‘to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.’ “ (*Ramirez v. Wong* (2010) 188 Cal.App.4th 1480, 1485, citing Civ. Code, § 51.) District cannot be held liable under this statute as public school districts are not “business establishments” for purposes of the Unruh Civil Rights Act. (*Brennon B. v. Superior Court* (2022) 13 Cal.5th 662, 678 [“in passing the Unruh Civil Rights Act, the Legislature enacted a law directed at entities operating as private businesses”].) Plaintiff also mentions Civil Code section 52.4, which provides for a private cause of action for gender violence, which Plaintiff has not alleged.

The motion to strike is granted without leave to amend. Plaintiff’s prayers #s 3, 4, and 5 are stricken.

Defendant District is ordered to answer within ten (10) days from service of the notice of the order.